

0. Why Criminology

What is Security?

Prevent to protect and maintain the safety of society, organizations, systems, etc.
prevent and detect crime

칼 Knife

Useful tool <-> weapon for crime
duality 양면성

Industrial Security and Crime

diverse technology 때문에 산업보안이 중요해지고 있음.
crime are committed by human

1. Introduction to Criminology

Examples

9/11 : 미국의 테러. 비행기 납치. 19명 가담. Anti-Terrorism 법 제정. 개인 보안검색 강화.
강호순 : 10명 이상 살해한 연쇄 살인자. 정부가 범죄자 정보 노출, CCTV 증가. 정부의 범죄자 DNA 관리 허가.
> Prevent crimes!

Criminology

Criminology : The field that address this issue of crime and criminal behavior and attempts to define, explain, and predict it. Interest in the casual explanation of crime. analyzing the phenomena of crime and criminality.

Criminal Justice : practical, applies concerns including policing

Criminalistics : **scientific** evaluation of physical evidence

*Crime : Violation of (criminal) Law

*Criminology : The scientific study of crime and criminal behavior

Auguste Comte : Progression of knowledge의 세 단계

1. Theological explanation 신학적 설명
2. Metaphysical(Philosophical) explanation 형이상학적 설명
3. Scientific explanation 과학적 설명

*Progression of knowledge : Comte's theory that knowledge has historically progressed from theological to metaphysical to scientific.

History of Criminology

1700s(18C) 후기 유럽 : Criminology가 Criminal law와 함께 시작됨

modern criminology는 대부분 미국이 차지함.

1920-1940s : 사회학의 발전과 함께 발전함.

1960s : Criminology has emerged as a disciplin in its own right(in 유럽?)

What is Crime?

1. 누군가 A를 한다.
2. 누군가 normal action이나 abnormal action(=deviance)를 한다.
3. 누군가 abnormal action에 대한 법을 만든다

*Deviance : Behavior that outside the limits of societal toleration.

사회의 대다수가 괴상하고, 위험하고, 짜증나고, 이상하고, 역겹고, 혐오스럽다고 보는 광범위한 활동

Social Toleration is relative **the time and the space.**

Social Toleration은 시간과 공간에 따라 다르다!

mid 19C US, bathing in the tub was considered unhealthy

욕조 목욕은 건강에 안 좋다

American wear shoes while indoors

미국에서는 실내에서 신발을 신는다

대부분의 사회에서는 indiscriminate(지각없는) lying, cheating, stealing, killing을 좋아하지 않음

Sumner's Type of Norms

사회적 행동의 기준을 카테고리화하고 정의한 것. 사회학에서 쓰임. By William Graham Sumner.

Folkways, Mores, Laws

Folkways : least serious norms and refer to usages, traditions, customs, or niceties that are preferred but are not subject to serious sanctions.

가장 덜 심각한 규범, 권장되지만 심각한 제제 대상이 아닌 것. 관례, 전통, 관습, 미묘한 점들이 해당.
e.g. manners, etiquette, and dress style.

Mores : refer to more serious customs that involve moral judgments as well as sanctions (rewards or punishments). 도덕적 판단뿐만 아니라 제제도 포함한 더 심각한 규범(보상 또는 처벌).

e.g. Prohibition against murder and theft.

Laws : represent formal modes of control, codified rules of behavior.

공식적인 방식의 통제, 행동의 코드화된 통제

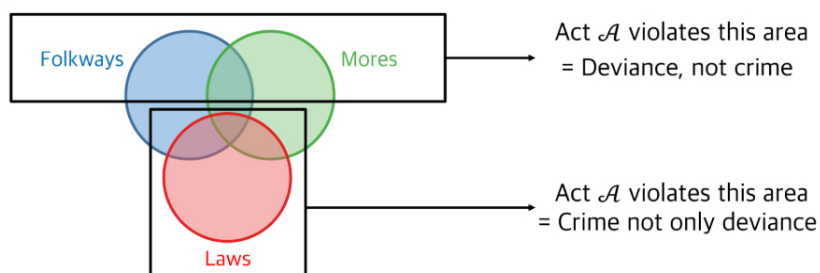
e.g. Tax regulation and speed on roads.

*Folkways : Less serious norms such as nice customs and traditions

*Mores : More serious informal social controls

*Laws : codified(written) rules that are some serious norms and contain sanctions.

Folkways와 Mores를 합쳐서 Laws를 만든다!

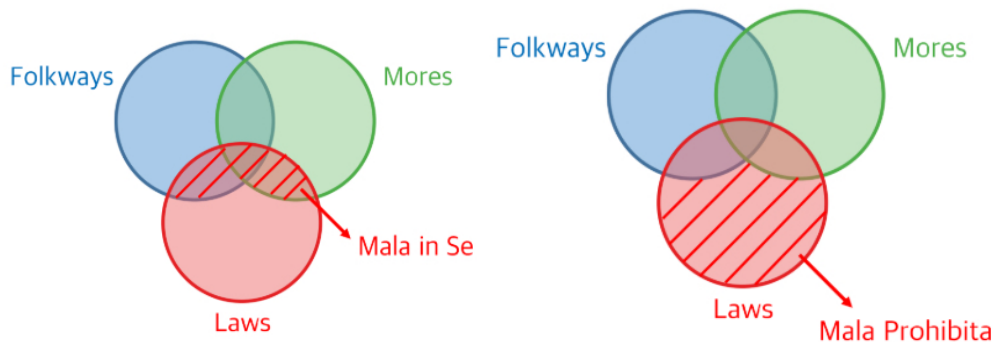


Mala in Se : Evil Itself. Forbidden behaviors for which there is widescale consensus on the mores(or also the folkways) for prohibition

e.g. murder, rape, and assault

Mala prohibita : Those are bad because they have been prohibited, not viewed as bad in society.

e.g. traffic violations and gambling



*Mala in Se : Acts that are bad in themselves.

*Mala prohibita : Acts that are bad due to being prohibited.

Undercriminalization : **Underuse** of the criminal law to control deviant activity

Overcriminalization : **Overuse** of the criminal law as an attempt to control deviant activities

Social Toleration은 시간과 장소에 따라 다르고, Folkways, Mores, Laws도 그렇다.

= 범죄도 시간과 장소에 따라 상대적이다.

Time-varying crimes : 기차 강도, 해적, Stagecoach(역마차) 강도, cattle rustling(소도둑), 묘지 강도, 총싸움
>> 해킹, phone scam

Space-varying crime : drinking in public

Gemeinschaft : a communal or folk society. simple, communal, relatively homogeneous society

e.g. S. Korea, Japan

Gesellschaft : an associational or heterogeneous society.

e.g. US, Europe

Consensus Model : the origin of criminal law envisions it as arising from **agreement among the members of a society**.

Conflict Model : the criminal law as originating in the conflict of interest of different groups.

Reflect the wishes of the **most powerful interest groups**.

*Consensus Model : the belief that criminal law originates in the will of the majority.

*Conflict Model : the belief that criminal law reflects the conflicts of interest of groups and that the more powerful groups define the law.

법의 특성

National Prohibition Act in US

금주법 시행 > 지역 갱이 커지고, 강력해짐 > 불법 술 만연 ; 모든 법이 완벽한 것이 아님.

Manifest functions(명시된 기능) : **intended or planned** consequences of social arrangements.

Latent functions(숨은 기능) : **unanticipated (hidden)** consequences of social activity.

형법의 4가지 특징

1. Assumed by political authority. The state assume the role of plaintiff(원고), or the party bring charges.
국가가 원고, 당사자가 소를 제기.
2. It must be specific, defining both the offense and the prescribed punishment.
명확해야 함. 범죄와 처벌 모두 구체적이어야 함.
3. The law is uniformly applied
평등하게 적용되어야 함.
4. The law contains penal sanctions enforced by punishments administered by the state.
국가에 의해 처벌되는 형벌 조항이 있어야 함.

Felonies vs Misdemeanors

Felonies : 미국 법 기준. 더 심각한 범죄. 1년 이상 감옥

Misdemeanors : 덜 심각한 범죄. 1년 이하 감옥

Cost of crime : 범죄의 비용을 측정하기는 어려움.

9/11에서는 2977명 사망 25000명 부상 주식 1.4조 증발, 150만명 직업 없어짐.

금전적 비용+심리학적, 건강적 비용

2. Research Methods in Criminology

Theories and methodology

*Theory(이론) : plausible(그럴듯한) explanation of reality that includes testable propositions(명제)
: 어떤 현상을 해석하기 위한 결론. ~~해서 ~~이다. 근거는 ~~이다.

*Methodology(방법론) : the rules and principles that provide guidance to collect and assess data.
How much crime is there? : Who commits crime? :

Theories와 Methodologies를 적용하기 위해 고려해야 하는 것은?

1. Objectivity 객관성
2. Ethics 윤리

*Objectivity : the idea that researchers should be neutral or **unbiased** in examining their subject matter.
객관성 : subject를 자기 입맛에 맞추어 고르거나, 편향되면 안됨.

*Code of Ethics : requirements that researchers behave **ethically** in conducting research.
윤리 : 사람이 범죄학의 주체이기 때문에, 윤리를 준수해야 함.

목적을 완전히 밝혀야 함. 기밀성을 지켜야 함. 최소한의 위험보다 더 노출시키며 안 됨. 프라이버시 지켜야 함. 차별, 압박, 피해 안됨.

Tuskegee Syphilis(매독) Study : 1932-1972 미국에서 400명 이상이 매독에 대한 실험을 인지하지 못한채로 참가.
100명 이상이 사망.

Operationalization

Variable(변수) : concept that varies or that can take on different numerical values.

Operationalization(방법) : describing how a concept is being measured.
변수를 측정하는 방법.

I measured O by □

O=Variable □=Operationalization

e.g. I measured [it] by [accessing the government DB system]

Official Police Statics

: Officially collected and maintained crime - related data and statistics by the police.

UCR(Uniform Crime Data)

: Since 1930, US Dept. of justice has compiled national crime statistics.

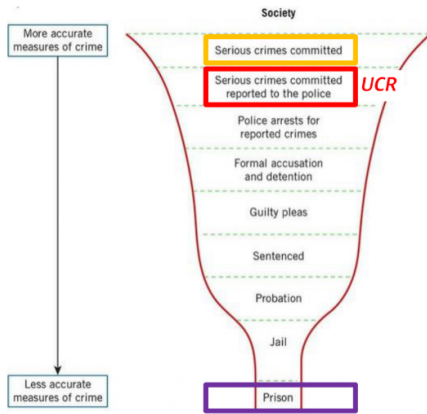
FBI assuming responsibility as the clearinghouse(정보 센터) and publisher. FBI가 수집 중.

범죄 양의 측정이 정확한지 아닌지 불확실하다.

1. Not all crimes that are committed are discovered. 모든 범죄가 드러나지 않음.
2. Some crimes may be known only to the perpetrators(가해자). 범죄 사실을 가해자만 알고있을 수 있음.

e.g. 피해자가 범죄 사실을 알아차리지 못함. 피해자가 없음(도박 Gambling)

3. Not all crimes that are discovered are reported to the police. 모든 범죄가 경찰에 보고되는 것 아님.



UCR Data funnel : 위로 갈수록 범죄 수의 정확도 높음. 아래는 낮음.

실제로는 Serious crime committed가 더 정확하지만 Serious crime committed reported to the police(UCR)이 unfounded crimes : crimes that the police decide never took place. 경찰이 알아내지 못한 범죄

Part I crime : major felonies(a crime that is punishable by death or **more than one year in prison**)

murder, rape, robbery

범죄율에 계산되는 범죄. Crime Index와 연관되어 있음! (동일한 개념은 아니지만 상당수 겹침)

FBI가 2004년부터 violent crime index와 property crime index 발표

Part II crime : Part I에 포함되지 않는 범죄. 범죄율에 계산되지 않는 모든 범죄.

범죄율에 계산되지 않는 범죄.

Fraud, Disorderly conduct(무질서한 행위)

Violent crime : Murder and nonnegligent manslaughter(미필적 고의에 의한 살인), forcible rape, robbery, aggravated assault(가중 폭행)

Property crime : burglary(주거침입), larceny-theft(침입x절도), Motor vehicle theft(차량절도), arson(방화)-계산x

*Crime rate : **Index Crimes / population * 100,000**

Crime rate가 10%이면, 100,000명당 10,000건의 범죄가 일어난다는 의미임.

범죄의 심각도에 따라서 가중치를 부과하지 않음(살인 vs 자전거 절도)

UCR 데이터에서 알아야 할 것

1. The recorded statistics represent only a portion of the true crime rate of a community.

Victim survey suggest that there is possibly twice as much crime committed as appears in official statistics

범죄율은 일부분만 표시함. 피해자 조사에 따르면 실제 범죄는 2배까지 많을 수 있음.

2. Larger, improved, and professionalized police departments appear to be positively related to rising crime rates. More police officers > More active observe

경찰이 많으면 범죄가 더 많이 발견됨

3. Higher standards of expected public morality may all have had impacts on increasing the recorded crime rate. depends on historical Changes of "Folkways, Mores, Laws."

사회의 도덕성이 높으면 범죄율이 더 높아짐

4. Most federal offenses, "victimless" crimes, and white-collar crimes do not appear in the UCR.

피해자 없는 범죄, 화이트칼라 범죄는 포함되지 않음

5. Changes in recordkeeping procedures (i.e., it heavily depends on technologies such as Internet and Smart phones) 스마트폰이 보급됨에 따라 기록을 쉽게 남길 수가 있게됨.

6. UCR statistics is arrest statistics. Arrest do not equal crimes solved.

체포된 수를 기준.

7. Crime index is made up primarily of property crimes.

재산 범죄를 기준으로 만들어짐

8. The crime index is unweighted. Murder=bicycle theft.

범죄의 경중을 따지지 않음.

NIBRS

NIBRS : UCR의 개선판

Alternative Data-Gathering Strategies

Experiment : 실험

Social Survey : 설문조사

Participant Observation : 대상자 관찰

Case Studies/Life History Methods : 인생 관찰

Unobtrusive measures : 관측되는지 모르는 상태로 관찰

위로 올라갈수록 Greater Control=Artificial=Internal Validity

아래로 내려갈수록 Less Control=Natural=External Validity

Research : research that involves **variations** of the classic experimental design employing equivalence, pre tests and post-tests, and **experimental and control groups**.

experimental group : receive the treatment(e.g. medicine)

control group : no treatment

두 개의 그룹을 구분하는 것이 treatment의 효과를 보여줌

equivalence : assignment of subjects to experimental and control groups in such a manner that they are assumed to be alike in all major respects.

균등하게 subject를 배분해야 함.

pretest : observations to note conditions that exist **prior to** treatment. 실험 전에 관찰

posttest : observations after the experimental treatment. 실험 후에 관찰

Housing for Prisoners Experiments

Treatment : Giving free housing to criminals away from their home area. 범죄자들에게 무료 집

Experimental group : free housing **away** from their home area 원래 살던 곳 멀리 줌

Control group : free housing **near** their home area 원래 살던 곳 주변에 줌

Result: the treatment group who moved to **new areas fared better** in terms of rearrest than those who did not move. 새로운 그룹으로 이사 간 사람이 재체포율이 낮았음.

Preventing Crime : What Works, what doesn't what's promising

What doesn't work : A program encourages individuals to voluntarily surrender firearms no longer need

A school-based initiative that provides education to students about the risks of drug abuse.

what works : Frequent home visits by nurses and other professional for infants.

Monitoring by specialized police units for high-risk offenders.

Community-based afterschool recreation programs.

Survey

: analyzing victimization, self-reported crime, public ratings of crime seriousness...

Dark figure of crime : unmeasured or undiscovered crime. 발견되지 않은 범죄.

Issues and Cautions in Studying Victim Data: Elizabeth Loftus' experiment : "The False Memory" 주입된 기억

에 대해 사실이라고 믿게 됨. > 기억은 완벽하지 않다.

Participant Observation

: A methodology that involves the observation of a group by participating. 직접 참여해서 관찰
생물학자들이 고릴라 사이들로 들어가 관찰함. 범죄학자들이 감옥과 죄수에 관해 실험을 함.(Stanford)
East Harlem에서 실제로 살면서 관찰을 함.

Case Study or life history

: A qualitative, case study method of examining a subject's life history.

Unobtrusive Measures

: Nonreactive methods of data gathering in which the subjects are unaware that they are being studied.
대상이 관측당하고 있는지 모르는 상태로 관찰

c.f. Simulation: attempt to mimic or imitate a more complex social reality (not widely-adopted).

Validity, Reliability, Triangulation

*Validity : the accuracy of measurement 측정이 정확하게 되었는가?

*Reliability : the consistency or stability of measurement 측정된 것이 믿을만 한가? 일반적으로 적용 가능한가?

*Triangulation : the use of multiple research methods 여러개의 method를 사용하는 것.

3. General Characteristics of Crime and Criminals

Additional Cautions in Crime

Crime data also depends on the time and the place. 범죄통계도 시공간에 따라 다름.

Dependency in the place —> International variations in crime data

Dependency in the time —> Trend in crime data

International Variations in Crime

International or cross-cultural comparisons of crime statistics are hazardous.

여러 나라의 통계를 비교하는 것은 위험

criminal activity, the quality of data, ideological considerations가 다름

example #1 미국과 일본의 범죄율(살인) 비교

일본은 줄고, 미국은 늘었음. 일본이 더 착한가?

> Cultural difference 때문임. 일본은 strong Gemeinshcaft, 경찰력, 단체주위 등 문화적 차이 무시.

example #2 The crime rate US versus UK

미국은 줄고 영국은 증가함. 미국이 더 착한가?

> Structural difference. 잉글랜드와 웨일스는 단순 폭행도 포함시킴. 구조 자체가 다름.

범죄 데이터를 통합하는데의 어려움(외울필요X)

1. 정의가 다름.
2. 각국의 경찰마다 범죄를 다르게 측정함
3. 일부 국가에서는 법정까지 가는 것만 측정함
4. 사실적 불평등- 나이, 도시화 등이 영향을 미침
5. 범죄율이 실제 범죄율보다는 경찰(정부)의 지표로서 쓰임.

UCR & NCVS : 같은 나라에서도 범죄율이 통계 방법(Methodology)마다 기준(범죄율)이 다름.

Time-independent comparisons of crime statistics are hazardous.

여러 시대의 범죄 통계를 비교하는 것도 위험. '요즘은 범죄가 너무 많다'고 생각하는 경향

특이한 상황(WW2 후)도 고려해야 함.

같은 행동에 대한 다른 관점 생각

Trends in Crime - Different perspectives

Witch Hunting : practice of accusing and executing individuals—typically women.

중세시대 때 행해진 마녀사냥. 당시에는 합법.

>> 시공간에 따라 달라지기 때문에 범죄 데이터를 조심해서 사용해야 함.

Inffering from crime data

1. Critical Thinking
2. Do not misinterpert. 잘못된 일반화(false generalized), 확대해석 금지
3. Do not Discriminatory actions or words

Age and Crime

대부분의 범죄가 18세 미만은 강도나 재산 범죄로 체포될 가능성이 높겠군.

재산범죄는 16세, 폭력범죄는 18세가 피크이고, 이 이후로는 전반적으로 줄어듦.

Age-Crime Debate : 어떤 사람이 성숙하는 것은 법을 배우면서 성장하는 것이다. "mature out of crime"

Social Class and Crime

돈이 많으면 범죄를 저지를 가능성이 낮겠군(돈이 많으면 법적 절차를 통해 자신을 보호함)

Bimodal theory : 실제로는 Low-High로 가면서 감소했다가 증가할 것임. 재산이 증가하면 자신에게 유리하게 할 힘이 있다.

Region and Crime

미국 남부에서 범죄율이 제일 높게 일어났다.

Institution and Crime

Institutions : organizations that serve a broad range of interests in society, such as the family.

속한 기관(그룹)에 따라서 범죄율이 다르다.

Family and Crime

가족은 어린시절에 사회화에 있어 중요하다.

가정교육(home discipline), 무시(neglect), 무관심(indifference)이 제일 연관있는 변수이다.

Delinquency : minor crime, especially that committed by young people(e.g. absenteeism)

과실 : 어렸을 때 저지르는 범죄

부모의 immorality, criminality, alcoholism, lack of control, economic pressure 등으로 일어남

Fallacy of autonomy : the erroneous belief that failings of the family are separate and independent of inequality, racism, and discrimination. 가족과 불평등, 인종차별, 차별은 별개라는 잘못된 믿음. 사회와 연계.

Spanking(체벌) : One aspect that has been hotly debated is using corporal punishment on children.

Recent research on spanking concluded that spanking is in fact related to several negative outcomes for children in the short and long term > 체벌은 그다지 큰 효과가 없고, 부정적인 효과가 있다.

Education and Crime

일반적으로 교육을 받으면 범죄율이 줄어듦.

This reflects the fact that legitimate opportunities increase with formal education.

"Enhancing social connection between persons." 지속적으로 사람들과 관계를 맺으면, 범죄율을 낮춤

Religion and Crime

One third of the public believes "Religion" plays a significant role in terms of criminology.

종교도 중요. 미국의 Jews들은 제일 낮은

War and Crime

영향을 미침. during major wars, the domestic crime rate as a whole tends to decline.

Economy and Crime

the rate of unemployment, the inflation rate, per capita income

**Mass Media and Crime

books, violent video games, music, newspapers, magazines, movies, or television cause an increase in crime?

Catharsis hypothesis(카타르시스 가정): "Media violence can prevent real—world violence." > 폭력성 낮춤

Precipitation hypothesis(원인제공 가정): "Media violence can provide the imitations in real—world." > " 높임

*Catharsis hypothesis : the belief that the observation of media violence serves as an emotional release and lessens violence.

*Precipitation hypothesis : the belief that the observation of media violence increases the propensity to violence.

*Copycat Crime : 모방범죄 - Precipitation hypothesis. crimes in which criminals imitate crimes that were previously publicized.

Jack the ripper : 신원 미상의 연쇄범죄자. In London, England.

다큐멘터리, 뮤지컬, 소설로 만들어짐.

2008년 Derek Brown이 같은 방식으로 모방범죄를 함. 30년 형 선고.

Correlation and Causality

Correlation(인과관계) : A가 B에게 영향을 미쳐서 A가 B의 원인이다!

Causality(상관관계) : A와 B가 관계가 있다.

*Correlation : a relationship between two variables where they **change together**.

*Causality : a relationship between two variables where **one variable influences the other variable**.

Correlation이 되기 위한 조건

Time order : The relationship should involve one variable changing after another variable has changed over time. 하나가 먼저 변화했을 때, 다른 하나가 뒤따라 변화하는 관계여야 함.

Non-spuriousness: 제3의 다른 변인으로서는 설명할 수 없어야 한다. > 직접적인 인과관계가 있어야 한다.

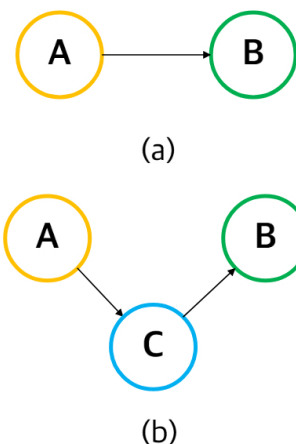
“Correlation is JUST a necessary condition for Causality.”

Causality는 correlation의 필요조건일 뿐이다.

Causality가 있다고 correlation이 있는 것은 아니다!

• Correlation or Causality?

- “A shows a positive relationship (i.e., correlation) with B”
e.g, “Low employments can lead to high number of crimes.”
- Can it mean “A is the cause of B”? **No**
- We have NO idea whether
 - (a) A really affects B: **Causality**.
 - (b) A affects C, and this C affects B: **Not Sure**.



4. Nature of Victimization

Criminology vs Victimology

Criminology - 범죄에 대한 학문 - 무얼 하는지, 왜 하는지, 어떻게 하는지. 법 시스템이 어떻게 반응하는지

Victimology - 피해자화(victimizaion)의 이유에 대한 연구, 법 시스템이 어떻게 피해자를 지원하는지, 미디어에서 어떻게 표현하는지

*Victimology - Victimology includes the study of the etiology (or causes) of victimization, of its consequences, of how the criminal justice system accommodates and assists victims, and of how other elements of society such as the media deal with crime victims.

National Crime Victimization Survey (NCVS)

: victimization survey in which persons are asked about their victimization experiences in the previous 6 months.

Property crimes were much more likely to be experienced as compared to violent crimes.

> Property crimes는 1000가구 당 150정도인 반면, Violent Crime은 1000가구당 30정도.

UCR에 있는 데이터와 NCVS에 있는 데이터는 조사 대상이 같지 않기 때문에 차이가 있다.

UCR : Violent crime와 단순절도, 차량절도, 강도의 합(Property crime)의 차이가 20배이다.

NCVS : Violent crime가 Property crime의 차이가 3배이다.

NCVS에서 특정 범죄의 victimization에 대해서 구별됨

어떤 성별, 인종/민족, 나이, 가족이 피해자가 되는지 알 수 있음.

Costs of Victimization

Varied costs : These costs can be economic, but victimization can also take a toll on a victim's mental health, ability to work, and the like.

Economic costs : those experienced by the victim, those the public incurs. 개인이나 공동체가 겪은 경제적 손실

Direct Property losses : 직접적인 피해(절도로 인한 피해액 등...)

Medical care : 의료비

Mental Health Consequences and Costs : 정신건강 치료비

legal fee : 법률(소송)비....

Direct Property Losses : Damaged, taken, insurance claims administration costs

Medical Care : Victims would gladly suffer property loss if it meant they did not experience any physical injury.

Mental Health Care Costs : first recognized in the late 1800s that people differentially respond to trauma, including victimization.

Three main affective responses common among crime victims are

1. Depression : 불면증, 식사못함, 자책감, 무기력감, 과민성. 원래 좋아하던거 잘 안함. 우울한 분위기.
2. Reductions in self-esteem
3. Anxiety

Depression은 어릴 때 또래로부터 괴롭힘으로 victimized 되었을 때 흔히 나타나는 결과다.

Online victimization은 depression을 불러일으킨다.

PTSD(Posttraumatic Stress Disorder) : psychiatric condition that recently has been recognized as a possible consequence of other traumatic events, such as criminal victimization.

*PTSD : psychiatric anxiety disorder caused by experiencing traumatic events such as war or violence.

PTSD로 인정받기 위한 3가지 조건

1. 실제, 또는 위협적인 죽음, 부상, 성폭력 같은 충격적 사건을 경험, 목격했고, 다른 사람이 그 사실을 알아야 함.
2. 증상이 한 달 이상 심각한 스트레스나 사회부적응 등 심각한 부작용을 야기해야 함.
3. 부정적인 변화는 사건 이후에 시작되어야 한다.

PTSD와 Depression은 동시에 일어날 수 있다. (우울증이 있으면 PTSD를 의심해봐야 함)

Self blame 자책

: After people are victimized, they may **blame themselves** for their victimization.

피해자 스스로 자책함.

1. Characterological self-blame : Occurs when a person ascribes blame to a **non-modifiable source** such as one's character. Involves believing that victimization is deserved. 나 자체 때문에 일어났다고 자책. 나 자체의 문제다.

2. Behavioral self-blame : Occurs when a person ascribes blame to a **modifiable source**—behavior
내 행동 때문에 그랬다고 자책. 내가 왜 그랬을까.

둘 중 Characterological self-blame이 더 위험하다!

*Characterological self-blame : person ascribes blame to a nonmodifiable source, such as his or her character.

*Behavior self-blame : when a person believes she or he did something to cause own victimization.

Learned Helplessness 학습된 무기력

: people who have been exposed to serious trauma may become depressed and experience behavioral changes
심각한 트라우마에 노출된 사람들은 행동을 바꾸려 하지 않게 됨.

개들 철창 실험. 나중에는 탈출 시도조차 하지 않게 됨.

Other Costs

Losses in Productivity : Persons who are victimized may experience an inability to work. 회사에서 일 잘 못함.

Pain, Suffering, and Lost Quality of Life : change in their routines and lifestyle. 삶의 질 저하. 영향을 받음.

> 서현역 사건 이후, 방검복 구매, 특정 역 방문 꺼림

System Costs : 국가적인 측면에서 피해자 보호같은 구조적인 비용이 들어가게 됨. 보험회사에서 범죄에 대한 비용 지불.

Fear of Crime : Widespread fear in society can lead to unforeseen costs or further crimes 두려움을 느낌.

Avoidance : 범죄 현장에 아예 가지 않게 됨 밤에 돌아다니지 않음.

Defensive : 보호하기 위한 행동을 함. 총 구매

> 일부 전문가들은 fear of crime이 높으면 victimize당할 확률이 낮다고 봄.

*Avoidance behaviors : restrictions that people place on their own behaviors to protect themselves from harm.

*Defensive or protective behaviors : behaviors engaged in to guard against victimization, such as purchasing a weapon.

Victim in Crime

Victimization theory : generally a set of testable propositions designed to explain why a person is victimized.
사람들이 왜 victimized되는지 설명하기 위한 테스트

Victim precipitation : the extent to which a victim is responsible for his or her own victimization.
피해자도 어느정도 범죄에 기여를 했다! 피해자가 자신의 피해에 책임이 있는 정도.

Victim facilitation: **unintentionally** makes it easier for an offender to commit a crime.

비의도적으로 범죄자가 범죄를 저지르게 만든다.

한강공원에서 핸드폰을 놓고 왔는데 누군가가 훔쳐감

Victim provocation: **intentionally** do something that incites another person to commit an illegal act.

의도적으로 해서 범죄가 일어나는 경우

집에 침입하려고 했으나, 집주인에게 총을 맞은 사람. > 침입이 victimize를 불러일으킴

The Criminal-Victim Dyad : 범죄를 당하기 쉬운 경향 13가지. 젊고, 여성, 나이 많고, 이민자..... 등등

Victim Classification : 피해자의 정도를 6가지로 나눔. Victim1<-완전히 결백 책임있음->6

#Routine activities theory : a person's routine activities, or daily routine patterns, affected his or her risk of being a crime victim. 어떤 사람의 루틴한 행동이나 패턴이 범죄와 관련이 있을 수 있음. 매일 뒷골목 다님

#Routine activities의 세가지 요인

1. Motivated offenders - 동기부여된 범죄자들
2. Suitable targets - 적절한 타깃
3. Capable guardianship - Lack of capable guardianship is more attractive as a victim.
방어가 갖춰지지 않은 타깃

*Motivated offenders : people who will commit crime if given an opportunity.

*Suitable targets : the idea that victims are chosen by offenders based on their attractiveness in the crime situation.

*Capable guardianship : means by which a person or target can be effectively guarded so that a victimization is prevented from occurring

Lifestyle Theory : They posited that certain lifestyles or behaviors place people in situations in which victimization is likely to occur. More common between characteristics of victims and offenders, more crimes.
나의 라이프스타일과 범죄자의 라이프스타일이 겹칠수록 당하기 쉬움

Principle of homogamy : the idea that people who share characteristics of offenders are more at risk of victimization, given that they are more likely to come into contact with offenders.

5. Early and Classical Criminological Theories

Criminology vs Victimology

plausible(그럴듯한) explanation of reality that includes testable propositions(명제)

Theoretical School	Major Themes/Concepts	Major Theorists
Demonological	Criminal as evil, sinner, supernatural pawn	Traditional authority
Classical (neoclassical)	Incapacitation, punishment, deterrence	Beccaria, Bentham
Ecological (geographic)	Group characteristics, physical and social ecological impacts on criminality	Quetelet and Guerry
Economic	Capitalism, social class inequality, and economic conditions cause crime	Marx, Bonger

Theoretical School	Classification
Demonological	<i>Early and Classical Criminological Theories</i>
Classical (neoclassical)	
Ecological (geographic)	
Economic	
Positivistic biological	<i>Biological and Psychological Theories</i>
Psychological	<i>Sociological Critical Theories and Integrated Theories</i>
Sociological	

Demonological Theory

: In the past, crime was believed to be the result of demonic influence or supernatural elements. The criminal was seen as an embodiment of evil or supernatural forces.

악마적 영향이나 초현실적인 요소의 영향을 받아서 범죄가 일어난다. 개인의 의지와는 무관. 신적 요소에만 의함.

*Demonological theory : assumes that supernatural forces cause and control crime commission.

loyalty to the "Prince of Darkness(악마)" or an expression of divine rage.

- e.g. Witch hunting

Classical(Neo Classical) Theory

: The criminal is considered a **rational, hedonistic**(i.e. engaged in the pursuit of pleasure;쾌락주의) individual with **free will**. The school emphasizes that **laws and punishments** should be **clear and predictable**, with punishment necessary for deterring crime.

범죄자는 자유 의지를 가진 이성적이고 쾌락을 좇는다.

이전의 유럽은 잔인하고, 불확실하고, 예측할 수 없는 criminal justice를 했다.(witch hunting)

Penal policy(형벌 정책)은 "dangerous classes"들로 여겨졌다.

Enlightenment and Liberal Philosophy(계몽주의와 자유적 철학) - 인간과 이성의 자연권

17-18세기 계몽주의는 성직자와 귀족에 도전하였고, 미국과 프랑스 혁명을 불러일으킴.

*Classical Theory : these theories assume that criminals are rational actors who weigh the **pleasure** and **Pain** of an activity. 사람의 행동은 자신의 의지로 이루어진다. 기쁨은 줄이고 고통은 줄임.

&Cesare Beccaria : criticized the arbitrary and unpredictable nature of the European judicial and penal systems, which relied on torture. 고문같은 방식으로 처벌을 하는 것은 안된다.

<On Crimes and Punishments>

punishment should be consistent predictable, and proportional to the crime.

지속적으로 예상가능하고 범죄에 비례해야 한다.

Law must be specific, and judges should not interpret the laws but follow them as written.

명확해야하고, 판사는 해석이 아니라, 적힌대로 따라야 한다.

Punishment should be based on the crime's severity and its deterrent effect.

처벌은 범죄의 심각도에 따라야하며, 억제 효과에 따라야 함.

&Jeremy Bentham : Hedonism(쾌락주의) and crime. laws should provide "the greatest happiness for the greatest number.

Utilitarianism : 절대 다수의 행복

the purpose of punishment as deterrence 처벌의 목적은 범죄의 억제이다.

rather than revenge focusing more on the certainty of punishment. 복수를 막고, 국가가 대신 처벌.

Beccaria와 Bentham의 공통점

모두 free will 때문에 범죄를 저지른다.

이득과 손해를 고려 판단이 이루어진다. 각각의 개인은 이성적 판단을 한다.

Aileen Wuornos is a well-known serial killer in the United States을 Bentham으로 해석하면...

강도 - 자산적인 행복을 위해서 > 행복 최대화

살인 - 혹시나 이 사람들을 살려줘서 저지를 강도를 말하는 것을 피하기 위해서 > 고통 최소화

• Summary of Classical Theory

Aspect	Classical Theory
Human Nature	Views humans as rational, with free will , capable of making their own choices .
Purpose of Punishment	To deter crime through fair, consistent, and directly related punishment .
Laws and Punishment	Laws must be clear and applied equally. Punishment must be proportional to the crime.

Neo-Classical Theory

*Neo-classical Theory : new classical theories that view crime as influenced by criminal opportunities to commit crime. > 개인이 모든 책임을 가지고 있다는 단점을 보완. 환경, 심리 다른 상황 등을 고려

Two main theories: Rational Choice Theory and Deterrence Theory

Rational Choice Theory

It posits that offenders consider the opportunities, costs, and benefits of specific crimes.

cost와 benefit 뿐만 아니라 opportunities(상황, 심리적 요인)도 포함됨.

It suggests that while individuals are not purely rational in their decision—making, they do take into account the costs and benefits.

Deterrence Theory

It reflects the belief that criminals are rational actors who will be deterred by more severe and certain punishment. 구체적인 형벌에 의해서도 범죄자가 영향을 받는다. 얼마나 처벌받을지 계산.

The "just deserts" concept assumes that individuals should pay for their wrongdoing and that they deserve the punishment.

• Classical Theory versus Neo-Classical Theory

Aspect	Classical Theory	Neoclassical Theory
Human Nature	Views humans as rational, with free will, capable of making their own choices.	Accepts rationality but recognizes external factors influencing responsibility and judgment.
Purpose of Punishment	To deter crime through fair, consistent, and directly related punishment.	More flexible, considers the offender's motives and circumstances for effective deterrence and rehabilitation.
Laws and Punishment	Laws must be clear and applied equally. Punishment must be proportional to the crime.	Allows for more discretion in law application, considering individual and social factors behind a criminal act .

차이를 알아둘 것!

Four Main Purpose of Punishment in Classical and Neo-Classical Theory

4가지 Classical과 Neo-Classical이 공유하는 목적

- o Retribution (복수; 국가가 나서서 복수해줌.)
- o Deterrence (억제; 형벌의 존재로 하여금 범죄를 억제함)
- o Rehabilitation (갱생, 범죄자를 갱생함)
- o Protection (보호; 사회를 지킴)

Ecological(Geographic) Theory

:This approach argues that crime is more influenced by group characteristics, social and physical environments than by individual traits. 개인보다는 그룹의 특징에 더 영향을 받음(사회, 물리적 환경)

Factors such as urbanization, migration, and community structures are considered important.

the interaction between human beings and the physical environment.

*Ecological theory : theories posit that crime is caused by environmental geographic forces

using crime statistics and geographical data.

Quentlet's finding

여름에는 사람에 대한 범죄가 늘어나고, 겨울에는 재산 범죄가 많이 일어난다.

적도기후에서 사람에 대한 범죄가 늘어나고, 한대지방에는 재산범죄가 늘어난다.

*Thermic law of crime : Quetelet's theory that violent crime increases toward the equator.

>>Although these are not statistically sharply developed theory, there are several meanings of ecological theory.

1. Viewing the 'dangerous classes' as an independent category, detached from prevailing social conditions, served the interests and soothed the consciences of the high social class.
귀족인지 아닌지가 중요한 것이 아니고, 지질학과 묶으려는 시도.
2. The ecological school represented a critical transition from the philosophical and purely theoretical approach of Beccaria to the **more scientific criminological approaches** of the 20th century.
범죄학이 과학적으로 발전하게 된 계기가 됨.

The economic approach views capitalism, social class inequality, and economic conditions as the main causes of crime. 자본주의, 사회 불평등, 경제적 상황이 범죄의 주 요인이다.

Economic pressures can lead individuals to commit crimes. 경제적 압박이 범죄를 저지르게 한다.

자본주의의 노동자 착취는 빈곤과 사회적 문제를 불러일으킬 것이다.

Willem Bonger : Criminal Law and class

Bimodal theory of reckless : criminal law as protecting the interests of the propertied class (or high social class) in capitalist societies and argued that capitalism precipitates crime by creating unequal access to life's necessities and promoting egoism.

>돈이 많으면 많을수록, 범죄율이 높고, 돈이 적으면 적을수록 범죄율이 높다.

• Effectiveness of Theory

THEORY	KEY NOTIONS OF CRIME CAUSATION	POLICIES
Demonological	Supernatural forces (demons) determine criminality.	Torture, exorcism, brutality
Classical/Neoclassical	Criminals are rational actors and responsible for their actions (free will).	The keystone of our criminal justice system, which assumes individual responsibility for one's actions. Let the punishment fit the crime.
Ecological	Group characteristics and social and physical environment affect crime.	Improvement of physical and social environment will decrease crime.
Economic	Capitalism and inequality cause crime.	Reduction of inequality and poverty will reduce crime.